

SENATE No. 2150

The Commonwealth of Massachusetts

PRESENTED BY:

Barry R. Finegold

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act providing for software licensing fairness.

PETITION OF:

NAME:

Barry R. Finegold

DISTRICT/ADDRESS:

Second Essex and Middlesex

SENATE No. 2150

By Mr. Finegold, a petition (accompanied by bill, Senate, No. 2150) of Barry R. Finegold for legislation relative to fair software licensing. State Administration and Regulatory Oversight.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 2007 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act providing for software licensing fairness.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 7D of the General Laws is hereby amended by adding the
2 following new section:-

3 Section 12. Fair software licensing

4 (a) A contract for the licensing of software applications, which are intended to be
5 installed by a governmental body and designed to run on generally available desktop or server
6 hardware, shall not limit such governmental body's ability to install or run the software on the
7 hardware of the governmental body's choosing.

8 (b) The secretary of technology services and security may promgulate regulations or
9 otherwise issue administrative directives to carry out the purposes of this section.

10 SECTION 2. Section 1 shall apply to any contract or addendum for the licensing of
11 software applications on or after the effective date of this act.